REPUBLIC OF THE PHILIPPINES
PROVINCE OF BATANGAS
MUNICIPALITY OF TUY

OFFICE OF THE SANGGUNIANG BAYAN

EXCERPT FROM THE MINUTES OF THE 124th REGULAR SESSION OF THE SANGGUNIANG BAYAN OF TUY, BATANGAS HELD AT THE MUNICIPAL SESSION HALL ON JUNE 10, 2025

PRESENT:

Hon. Michael O. Perez,	Municipal Councilor, PRESIDING OFFICER, PRO-TEMPORE,
Hon. Randoll I. Catapang,	Municipal Councilor,
Hon. Reymundo C. Rodriguez,	Municipal Councilor,
Hon. Felisa C. Rivera,	Municipal Councilor,
Hon. Adrian C. Perez,	Municipal Councilor,
Hon. Roberto A. Mendoza,	Ex-Officio Member, ABC President,
Hon. Ly-ann Angeline D. Avena,	Ex-Officio Member, SK Federation President.

ABSENT:

Hon. Armando P. Afable,	Municipal Vice Mayor,
Hon. Rafael C. Bautista,	Municipal Councilor,
Hon. Aniceto C. Abiad,	Municipal Councilor,
Hon. Eduardo P. Afable Jr.,	Municipal Councilor, on seminar.

RESOLUTION NO. 2025 - 061

RESOLUTION APPROVING ORDINANCE NO. 045: AN ADDENDUM TO RESOLUTION NO. 2023-171: APPROVING TAX ORDINANCE NO. 2023-001, CHAPTER V, ARTICLE B, SECTION 5B.01. IMPOSITION OF FEES OF THE 2023 REVISED REVENUE CODE OF THE MUNICIPALITY OF TUY, BATANGAS

WHEREAS, the Local Government Code of 1991, Section 191 states that "*local government units shall have the authority to adjust the tax rates as prescribed herein not oftener than once every five (5) years, but in no case shall such adjustment exceed ten percent (10%) of the rates fixed under this Code*";

WHEREAS, the local revenue is vital in providing finance over which local government has the most discretion. Therefore, local revenue is important for the success and long-term sustainability of service delivery in the local government.

WHEREAS, the Municipal Covered Court has 16 newly installed air conditioning units (ACUs) thus, increased the electricity bill of the said government facility;

WHEREAS, on its current use, the cost of using the Municipal Covered Court is amounting to PHP 2,084.27, thus issuing a rental fee amounting to PHP 2,100.00 per hour is based on the following computation;

A. ELECTRICITY COST		
a. Cost per kWh	PHP 22.75	
b. Total number of air conditioning units	16	
c. kWh rate per ACU	3.34	
d. Total kWh per ACU	53.44	b x c
Cost per hour use of ACUs	**PHP 1,215.76**	a x d

Note: *The cost per kWh is based on the previous BATELEC I billings, as the Municipal Covered Court has its own transformer.*

B. EQUIPMENT RECOVERY & REPLACEMENT COST		
a. Total ACUs cost	PHP 3,343,450.00	
b. Life span of ACU (in years)	5	
c. Annual requisition cost	PHP 668,690.00	a / b
Cost per hour use	**PHP 515.96**	c / 1,296 hrs.

Note: *Assuming 3 days per week use, estimated 8 hours of use per day 162 days per year or 1,296 hours of use per* year
Assuming life span of off ACUs = 5 years

C. MAINTENANCE COST		
a. Regular cleaning (per unit per month)	PHP 2,000.00	
b. Regular cleaning for all units per year	PHP 384,000.00	16 x 12 (mos.) x 2,000
Maintenance cost per hour of use	**PHP 296.30**	c / 1,296 hrs.

D. OPERATIONS COST		
a. Cost of manpower per day of use	PHP 450.00	
Cost per hour use	**PHP 56.25**	450 / 8

Total additional rental cost of municipal covered court for the use acu	**PHP 2,084.27**	A + B + C + D

WHEREAS, additional rental fee is to be added to the 2023 Revised Revenue Code pertaining to the use of Municipal Covered Court;

NOW, **THEREFORE**, on motion of Hon. Felisa C. Rivera and duly seconded by all members of the Sangguniang Bayan present, the following Ordinance was approved.

RESOLVED, **TO ADDEND**, as it is hereby **ADDENDED**, by the Sangguniang Bayan, in session assembled, by virtue of the powers vested in it by law that:

ORDINANCE NO. 045

AN ADDENDUM TO RESOLUTION NO. 2023-171: APPROVING TAX ORDINANCE NO. 2023-001, CHAPTER V, ARTICLE B, SECTION 5B.01. IMPOSITION OF FEES OF THE 2023 REVISED REVENUE CODE OF THE MUNICIPALITY OF TUY, BATANGAS

Be it ordained by the Sangguniang Bayan that:

CHAPTER V – MUNICIPAL CHARGES AND FEES

ARTICLE B. FEES AND CHARGES FOR THE USE OF GOVERNMENT FACILITIES

SECTION 5B.01. Imposition of Fees. There shall be collected the following venue rental fees and charges for the use of government facilities:

SN	LOCAL FEE/ CHARGE	REFERENCE	AMOUNT
3.1	Tuy Covered Court (per hour)		₱ 500.00
3.2	Tuy Covered Court with the use of air condition units (per hour)		₱ 2,100.00

SECTION 7A.04. Effectivity. This ordinance shall take effect immediately after its approval.

ADDENDED, this 10th day of June, 2025 at Tuy, Batangas.

RESOLVED FURTHER, to furnish a copy of this Tax Ordinance to the Sangguniang Panlalawigan of Batangas for its review and appropriate action.

I hereby certify that this is true and accurate copy of the ordinance approved by the Sangguniang Bayan on June 10, 2025.

MERLINDA P. MENDOZA
SB Secretary

Attested by:

MICHAEL O. PEREZ
Municipal Councilor
Presiding Officer, Pro-Tempore

Approved by:

JOSE JECERELL C. CERRADO
Municipal Mayor